IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-516

CP (CAA) No. 80/230/232/PB/2020

IN THE MATTER OF:

Chemester Food Industry Pvt. Ltd. With
Annapati Nutri Foods Pvt. Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 11.08.2022**

CORAM:
SHRI P.S.N. PRASAD,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Rajeev K Goel and Kartikeya Goel, Advocates
For the RD : Swechcha Mishra & Priyadarshini Dewan, Advs.
For the OL : Ms. Hemlata Rawat
For the IT Dept. : Zoheb Hossain, Sr. Standing Counsel; Parth Semwal & Vipul Agrawal, Jr. Standing Counsel

ORDER

Heard the Jr. St. Counsel for Income Tax Department. He submitted that the report of Applicant Company will be submitted within next two weeks. Proxy Counsel for RD appeared and submitted that they have filed their report which have certain observations to which Ld. Counsel for Petitioner submitted that they have filed their reply to those observations by way of an affidavit and Ld. Counsel for RD has also submitted that they are satisfied with the reply of the Petitioner.

Since lot of time has elapsed and no reply is forthcoming from Income Tax Department, this is the last opportunity being given to Income Tax Department, if they do not file their reply within the next date of hearing, the matter will be accordingly proceeded further.

Ld. Counsel for RD will file an affidavit to this effect within the next two weeks. Let the matter be posted to **02.09.2022.**

Sd/-
(RAHUL BHATNAGAR)
MEMBER (T)

Sd/-
(P.S.N. PRASAD)
MEMBER (J)

Md Saddam